

		evidence that the defendant has been guilty of oppression, fraud, or malice. At the pleading stage, the complaint must allege facts supporting circumstances of oppression, fraud, or malice. (<i>Grieves v. Superior Court</i> (1984) 157 Cal.App.3d 159, 166 (“The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. [Citation] Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim. [Citation].”).) Plaintiff acknowledges that he cannot obtain punitive damages based on his breach of contract claim alone. He argues that his cause of action for declaratory relief is not limited to contract interpretation and may sound in tort. Plaintiff is incorrect. Not only is a declaratory relief claim not a tort claim, but Plaintiff’s specific declaratory relief claim only requests relief based on the parties’ contract. As it currently stands, there are no allegations in the Second Amended Complaint that support punitive damages. (See <i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1, 20 (“punitive damages are never recoverable for breach of contract, no matter how willful or malicious, except where the wrongful act is also a tort.”) [internal citations omitted].) Plaintiff references his pending Motion for Leave to File a Third Amended Complaint which contains a third cause of action for willful violations of the California Financing Law. (Plaintiff’s Ex. A.) Without evaluating the merits of the proposed pleading, as a tort, this claim arguably could support a claim for punitive damages. Accordingly, the Court grants Defendants’ motion, but will allow Plaintiff the opportunity to amend to state allegations to support his claim for punitive damages. In light of the above, Plaintiff’s motion for leave to amend scheduled for December 21, 2026 at 2:00 p.m. in Department C27 is moot and hereby vacated. The case management conference is continued to February 22, 2027 at 10:00 a.m. in Department C27. Defendants are ordered to give notice.
111	2025-01497932 Roushanzamir vs. Thune	1. Demurrer - Other 2. Case Management Conference The hearing on Cross-Defendant Ali Roushanzamir’s Demurrer to Cross-Complaint is continued to 12/28/2026 at 2:00 p.m. in Department C27. The case management conference is continued to the same date and time. The Court notes that the proof of service for the demurrer reflects an incorrect email address for Cross-Complainants’ counsel. The proof states that opposing counsel was served at “brian@<u>bccceq</u>.com”; however, the email address of record for counsel is “brian@<u>bccesq</u>.com.” Given the lack of opposition, the Court cannot confirm whether the demurrer was actually received by Cross-Complainants’ counsel. Additionally, the declaration attached to the Demurrer does not demonstrate compliance with the meet and confer requirement of CCP section 430.41, which require a declaration stating either of the following:

		(A) The means by which the demurring party met and conferred with the party who filed the pleading subject to demurrer, and that the parties did not reach an agreement resolving the objections raised in the demurrer. (B) That the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith.” (Code Civ. Proc., § 430.41, subd. (a)(3).) Cross-Defendant is ordered to file and serve a corrected proof of service and the requisite meet and confer declaration by 12/02/2026. Otherwise, the Court intends to take the demurrer off calendar. The Clerk shall give notice of the ruling.
112	2025-01486130 Caruso vs. State of California	1. Demurrer to Amended Complaint 2. Motion to Strike Portions of Complaint 3. Case Management Conference Continued to September 23, 2026 at 8:30 a.m.
113	2021-01204953 Yang vs. Evan Paul Motorcars	1. Motion to Be Relieved as Counsel of Record 2. Motion to Be Relieved as Counsel of Record 3. Order to Show Cause re: Monetary Sanctions 4. Trial Setting Conference The motions of Troy Schell and John Nuelle, of Schell Nuelle, LLP, to be relieved as counsel of record for Evan Paul EA Auto Leasing, LLC and Evan Paul Auto Holdings, LLC, are granted. Counsel is ordered to submit revised orders with the new next hearing date. Upon the signing of the orders, Schell Nuelle, LLP shall serve the signed orders on the clients and all parties. Schell Nuelle, LLP will be relieved as counsel of record for Evan Paul EA Auto Leasing, LLC and Evan Paul Auto Holdings, LLC, effective upon the filing of the proofs of service of the signed orders upon the clients and all parties. Evan Paul EA Auto Leasing, LLC and Evan Paul Auto Holdings, LLC are advised they cannot represent themselves in this litigation. A licensed attorney must represent a business entity. (<i>Paradise v. Nowlin</i> (1948) 86 Cal.App.2d 897, 898; <i>Roddis v. Strong</i> (1967) 250 Cal.App.2d 304, 311; see Bus. & Prof. Code, § 6125.) Failure to retain an attorney may lead to striking of the pleadings, among other actions. The Court sets a status conference re: Defendants’ retention of new counsel for February 8, 2027 at 10:00 a.m. in Department C27. If Defendants do not appear through counsel at the next hearing, the Court will issue an OSC re: obtaining counsel or striking each answer. The OSC is discharged. The trial setting conference is continued to February 8, 2027 at 10:00 a.m. in Department C27. Schell Nuelle, LLP shall give notice of the ruling.